

*** § 9.59 Immunity from liability.**

(a) Notwithstanding any inconsistent provision of any general, special or local law, an ambulance service as defined by subdivision two of section three thousand one of the public health law and any member thereof who is an emergency medical technician or an advanced emergency medical technician transporting a person to a hospital as authorized by this article, any peace officers, when acting pursuant to their special duties, any police officers, who are members of an authorized police department or force or of a sheriff's department, and any members of mobile crisis outreach teams approved by the commissioner pursuant to section 9.58 of this article, who are taking into custody and transporting a person to a hospital as authorized by this article, or to a hospital or other facility as authorized by section 22.09 of this chapter, and any employee of a licensed comprehensive psychiatric emergency program, specially trained in accordance with standards developed by the commissioner, who transports a person to a hospital, shall not be liable for damages for injuries alleged to have been sustained by such person or for the death of such person alleged to have occurred by reason of an act or omission unless it is established that such injuries or such death was caused by gross negligence on the part of such emergency medical technician, advanced emergency medical technician, peace officer, police officer, mobile crisis outreach team member, or specially trained employee of a licensed comprehensive psychiatric emergency program.

(b) Nothing in this section shall be deemed to relieve or alter the liability of any such ambulance service or members thereof, peace officers, police officers or specially trained employees of a licensed comprehensive psychiatric emergency program for damages or injuries or death arising out of the operation of motor vehicles.

* NB Effective until July 1, 2027

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